

## 25STCV08698 25STCV08698

County: los-angeles

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Case Number: 25STCV08698 Hearing Date: July 30, 2026 Dept: 732

Jennifer Troia, Director of California Department of  
Social Services v. The Food Bank of Southern California., et al.

Thursday, July 30, 2026

CASE NUMBER: 25STCV08698

OPPOSED

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Plaintiff Jennifer

Troia, as Director of California's Department of Social Services' Motion to  
Compel Further Responses to Requests for Production from Defendant The Food  
Bank of Southern California

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Facts: This is an  
action for breach of contract, fraud, and conversion, brought by Plaintiff  
Jennifer Troia in her capacity as Director of the California Department of  
Social Services ("DSS"). The Complaint alleges as follows. DSS had at least two  
contracts with Defendant The Food Bank of Southern California ("Food Bank")  
through which DSS agreed to reimburse Food Bank for certain disbursements and  
expenses related to its mission to provide food to those in need, pursuant to  
various California and federal programs. (Complaint ¶¶ 26–55.)

In response to a whistleblower

complaint in June 2024, DSS investigated and uncovered various acts of misappropriation of the funds it provided to Food Bank. (Complaint ¶¶ 61–64.) Food Bank obtained reimbursement from DSS for expenditures to third party companies owned or associated with one of its officers, Defendant Giuseppe Briguglio and his relative, Defendant Abele Cosmo Briguglio, which were not lawfully compensable and in many cases were for goods and services never delivered. (Complaint ¶¶ 67–116.) Similar apportionments were made to companies associated with Food Bank officer Defendant Dion Rambo, (Complaint ¶¶ 117–123.) Food Bank received funds for certain programs which failed to meet program requirements. (Complaint ¶¶ 124–152.)

Food Bank received reimbursement for CEO travel, donor management, and other non-compensable items. (Complaint ¶¶ 153– 179.) The officers and directors violated the Food Bank's bylaws, failed to maintain corporate formalities, and Defendants Jeanne Cooper, Lamarr Ramsey, Brian Weaver, Egerton Forster, Alice Harris, Rambo diverted funds for private uses. (Complaint ¶¶ 180–229.)

Procedural History: Plaintiff filed the Complaint on March 25, 2025, alleging nine causes of action:

1.  
Breach of Contract
2.  
Petition for Writ of Possession
3.  
Breach of Implied Covenant of Good Faith and Fair Dealing
4.  
Money Had and Received
5.  
Equitable Accounting
6.  
Fraud – Concealment

7.

Fraud – Intentional Misrepresentation

8.

Conversion

9.

Declaratory Relief

This court on January 12, 2026, sustained in part the demurrer of Defendants Abele Cosmo Briguglio, Joe Briguglio, ANB Consulting Services, Inc., Creative Foods, Inc., Heritage Fine Foods, Inc., JCO Holdings, and River Point Foods, Inc., to the seventh cause of action for fraudulent concealment with leave to amend, and as to the eighth cause of action for fraudulent misrepresentation with leave to amend against Defendants G. Briguglio and A. Briguglio. The court granted these defendants' motion to strike allegations in paragraphs 324 and 325 of the Complaint alleging conversion of real property.

Plaintiff filed a First Amended Complaint ("FAC") on February 11, 2026, alleging the same causes of action as in the original Complaint.

On April 28, 2026, this court denied Defendants Foodbank and Brian Weaver's motions to quash subpoenas, but granted their motion in part as directed to Quigley & Myron, directing redaction of individual social security numbers and insurance information.

On June 23, 2025, this court granted Plaintiff's motion to compel further responses to requests for production from Defendant Greg Bynum.

On June 25, 2026, this court granted Plaintiff's motion for leave to file a Second Amended Complaint ("SAC").

Plaintiff filed the present motion to compel further response from Defendant Food Bank on January 16, 2026.

Defendant filed an opposition  
on April 15, 2026.

Plaintiff filed a reply on  
April 21, 2026.

On April 28, 2026, this court  
continued hearing on the present motion to compel further to July 30, 2026.

Plaintiff filed a supplemental  
declaration on July 24, 2026.

Analysis

I.  
MOTION TO  
COMPEL FURTHER

“A party may demand  
that any other party produce . . . a document that is in the possession,  
custody, or control of the party on whom the demand is made.” (Code Civ. Proc.,  
§ 2031.010(b).) The demanding party may move for an order compelling further  
response to the demand if the demanding party deems that (1) a statement of  
compliance with the demand is incomplete, (2) a representation of inability to  
comply is inadequate, incomplete, or evasive, or (3) an objection in the  
response is without merit or too general. (Code Civ. Proc., § 2031.310(a).) “The  
motion shall set forth specific facts showing good cause justifying the  
discovery sought by the demand,” and “[t]he motion shall be accompanied by a  
meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §  
2031.310(b).)

A motion to compel  
a further response to an inspection demand must set forth specific facts  
showing “good cause” justifying the discovery sought by the inspection demand.  
(Code Civ. Proc., § 2031.310(b)(1); *Kirkland*  
*v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) Unless there is a  
legitimate privilege issue or claim of attorney work product, that burden is  
met simply by a fact-specific showing of relevance. (*TBG Ins. Services Corp. v. Superior Court* (2002) 96 Cal.App.4th  
443, 444.) Once the moving party demonstrates good cause for the discovery, the  
burden is on the responding party to justify any objection or failure to fully

respond to the inspection demand. (Coy v Superior Court (1962) 58 Cal.2d 210, 220.)

Plaintiff Jennifer

Troia, in her capacity as Director of the California Department of Social Services ("Plaintiff") seeks further responses to Requests for Production, Set One, served upon Defendant The Food Bank of Southern California ("Foodbank").

1.

Statements of Compliance

Plaintiff seeks a

further response to Requests No. 1, 25–33, 37–38, 52–54, 58–60, 62–63,

101, 109, 121, 124–125, 127, 131–135, 138–143, and 156–157, on the grounds that although Foodbank responded to these requests with statements of compliance, the statements do not comply with Code of Civil Procedure § 2031.220, or indicate whether responsive production shall be conducted in whole or in part. (Separate Statement at pp. 6–7.) Plaintiff further argues that for certain requests — Requests No. 2–3, 78, 97, 103, 108, 123, 136–137, and 155 — no production has occurred, despite statements of compliance. (Separate Statement at p. 7.) Conversely, production has occurred for other request — Requests No. 11–14, 17, 23, 80, 107, and 159 — to which only objections were offered. (Separate Statement at p. 7.)

As an initial

matter, the requests at issue are supported by good cause, as they relate to the subject matter of the present action, which concerns the misappropriation of grant funds given to Foodbank by Plaintiff. (Code Civ. Proc. § 2017.010.)

A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.

(Code Civ. Proc. §  
2031.220.)

If a responding  
party withholds records pursuant to an objection, the responding party must  
identify the thing withheld, and set forth clearly the objection upon which the  
withholding is based. (See Code Civ. Proc. § 2031.240, subd. (b).)

Here, of the  
statements of compliance in the requests at issue, only that of Request No. 54  
complies with the above statutes, as Foodbank's response to that request  
states, "Responding Party will comply with this request and produce all  
documents responsive to this request that are in the possession, custody, or  
control of Responding Party. (Matsushima Decl. Exh. 3 at p. 4.) Thus the  
response reasonably indicates that Foodbank will comply in whole with the  
request and produce all responsive documents in its possession.

The remaining  
responses consist of statements of compliance that are partial or conditional —  
Foodbank "will produce non-privileged, responsive documents currently in its  
possession, custody, or control, if any exists" (Matsushima Decl. Exh. 2, No.  
62) — or ambiguous as to whether production of responsive documents is  
being permitted in whole or in part. (Id. at No. 2.) Foodbank offers an  
express statement of partial compliance as to Request No. 103, but does not  
explain the basis for the partial response, whether in objection or ability to  
comply. (Id. at No. 103.)

In opposition,  
Foodbank argues that supplemental production may cure these defects.  
(Opposition at pp. 4–5.) But despite offering a supplemental response, and  
despite the continuance of the hearing on this matter from April 28 to July 30,  
2026, no supplemental responses have been given. (Supp. Matsushima Decl. ¶¶  
18–19.)

As to the  
inconsistent production of documents, Plaintiff in a supplemental declaration  
indicates that supplemental production of documents (without further written  
responses) has been made since Foodbank filed its opposition to the present  
motion. (Supp. Matsushima Decl. ¶¶ 10–12.) However, it does not appear that  
this production corresponds to the requests at issue, as the documents

identified in Plaintiff's supplemental declaration do not match Foodbank's proposed supplemental production. (Supp. Matsushima Decl. ¶ 12; Opposition at pp. 5–6.) And as to those requests for which only objections were offered, yet production was made — Requests No. 11–14, 17, 23, 80, 107, and 159 (Matsushima Decl. ¶¶ 45–46) — a further response is required to indicate Defendant's actual posture for these responses, as Foodbank acknowledges in opposition. (Opposition at p. 5.)

Accordingly, the motion is GRANTED as to Requests No. 1–3, 11–14, 17, 23, 25–33, 37–38, 52, 53, 58–60, 62–63, 78, 80, 97, 101, 103, 107, 109, 121, 123–125, 127, 131–143, 155–157, and 159, and DENIED as to Request No. 54.

2.

#### Statements of Inability to Comply

Plaintiff argues

that Foodbank's responses to Requests No. 55, 57, 61, 71–72, 119–120, are deficient, as they consist of statements of inability to comply which do not contain the information required in Code of Civil Procedure § 2031.230. (Separate Statement at pp. 8–10.)

"A

representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

(Code Civ. Proc. § 2031.230.)

Foodbank's

responses indicated that a diligent search had been made, but with only the resulting conclusion that "documents responsive to this request are not in the

possession, custody, or control of responding party.” (Matsushima Decl. Exh. 3.) These responses do not indicate whether the documents are lost, destroyed, never existed, and they do not indicate where Foodbank believes they may be found. Defendant acknowledges that supplemental responses are required. (Opposition at pp. 6–7.) The court notes that the range of Foodbank’s control of documents, for the purpose of identifying the universe of responsive production, includes “documents he could be expected to access.” (Manlin v. Milner (2022) 82 Cal.App.5th 1004, 1015.)

Accordingly, the motion is GRANTED as to Requests No. 55, 57, 61, 71, 72, 119, and 120.

### 3. Objections

Plaintiff argues that Foodbank’s objections to Requests No. 4–10, 15–16, 18–22, 24, 34–36, 39–51, 56, 64–70, 73–77, 79, 81–96, 98–100, 102, 104–106, 110–118, 122, 126, 128–130, 144–154, 158, and 160–161, to which only objections have been offered, should be overruled and further responses compelled. (Separate Statement at pp. 10–19.)

Foodbank in opposition argues that its objections based on lack of particularity stand for all requests that do not “identify documents by specific subject matter, party, transaction, or date range.” (Opposition at pp. 7–8.) Foodbank does not identify specifically which requests fail to pass muster in this regard, save those requests for which it indicates it is willing to withdraw the objection, but only “for example.” (Opposition at pp. 7–8.) The remaining requests do not appear on their face to lack particularity, and as these requests seek documents relevant to the subject matter of this action, it is Foodbank’s burden to justify the objections that it asserts. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98 [“Once good cause was shown, the burden shifted to Kirkland to justify his objection.”].) Foodbank does not sustain its burden with respect to this objection.

Foodbank objections based on oppression and burden are also not persuasive. Defendant’s argument on this point consists largely of the note that a high volume of requests are made. (Opposition at p. 8.) But this argument avails little when the discovery



is relevant, a long period of time has elapsed since the discovery was propounded (in this case on June 3, 2025 (Matsushima Decl. ¶ 4), and no evidence is offered to show the “quantum of the work required” to respond. (Williams v. Superior Court (2017) 3 Cal.5th 531, 549.) Moreover, as Plaintiff notes in the motion, the contractual relationship between Foodbank and the DSS always carried the requirement that Foodbank maintain records sufficient to permit periodic or random audits of its operations to ensure compliance with program requirements. (FAC Exh. A at p. 22; see also Health & Safety Code § 38041 [describing audit requirements of non-profit corporations].) Plaintiff’s claims here allege wide-ranging fraud among Foodbank, its officers, and various third-party entities, dating back to 2016. While the court must limit discovery “if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence” (Code Civ. Proc. § 2017.020, subd. (a)), such relief does not warrant sustaining Foodbank’s objections to the bulk of discovery at issue here.

However, Defendants’ objections to the overbreadth of certain request are well-taken. Plaintiff justifies Requests No. 10–14, which seek all communications between Foodbank and various journalistic organizations, on the grounds that any incriminating statements made to the news media during the pendency of 2024 and 2025 investigations into Foodbank are properly discoverable. (Separate Statement at p. 19.) But the scope of the request is for the “relevant time period,” i.e. dating back to 2016, not during the pertinent investigations or the present case. (Matsushima Decl. Exh. 2.) Thus the scope of Foodbank’s responses to Requests No. 10–14 are properly limited to documents created on or after January 1, 2024.

Foodbank further objects based on privacy, which objection it defends on the grounds that certain requests may call for the production of personal information of third parties, such as donors and employees, and may include social security numbers. (Opposition at p. 9.) But this objection is already substantially answered by the entry of a protective order in this case. (See 9/10/2025 Order.) And insofar as responsive documents include social security numbers or insurance information, such privacy interests are accounted for by directing that such information be redacted. (See 4/28/2026 Order on Foodbank’s Motions to Quash.) Such an order is proper here as well.

Foodbank argues

that its objections based the documents being equally in the possession of Plaintiff are warranted in light of the substantial taking of records that ensued with the execution of a warrant on Foodbank's headquarters by the California Highway Patrol. (Opposition at pp. 9–10.) But Foodbank does not show that the records at issue are equally available to Plaintiff by virtue of their seizure by the CHP. "[A] nonparty state agency is considered a third party where the People are the plaintiff in an action, requiring a defendant in such a case to serve it with a subpoena to obtain documents." (People ex rel. Lockyer v. Superior Court (2004) 122 Cal.App.4th 1060, 1077–1078.) Thus while the seizure might furnish a basis for Foodbank's inability to comply with certain requests, subject to a proper statement under Code of Civil Procedure § 2031.230, it does not here provide a basis to withhold production of documents within its control. Moreover, for certain of the requests at issue — Requests No. 4–8, which seek Foodbank's communications with CHP, FBI, and DOJ — Foodbank asserts the objections despite having little reason to believe that Plaintiff has greater access to such communications with separate agencies than Plaintiff does. Thus this objection provides no basis to limit responsive production.

Foodbank

argues that it served objections based on the tax return privilege to Requests No. 112 and 113, which seek its tax filings during the relevant period, for which objection Plaintiff offers no argument in its motion or reply. (Opposition at p. 10.) "Tax returns are privileged from disclosure." (Strawn v. Morris, Polich & Purdy, LLP (2019) 30 Cal.App.5th 1087, 1098.) Accordingly, the motion is DENIED as to Requests No. 112 and 113.

Accordingly, the

motion is GRANTED as to Requests No. 4–10, 15–16, 18–22, 24, 34–36, 39–51, 56, 64–70, 73–77, 79, 81–96, 98–100, 102, 104–106, 110, 111, 114–118, 122, 126, 128–130, 144–154, 158, and 160–161, with production under Requests No. 10–14 limited to documents created on or after January 1, 2024. The motion is DENIED as to Requests No. 112 and 113. Documents that contain social security numbers or individual insurance information shall be redacted of such information.

4.

Format

Plaintiff argues

that Defendant's production consists of large PDF files, rather than documents in native format or as bates-numbered tiff or jpeg image files as specified in the requests, and that Foodbank has failed to indicate which pages constitute separate documents. (Separate Statement at pp. 7–8.)

Plaintiff's

requests indeed sought production of "native files converted to bates-numbered single-page tiff or jpg image files" and "image load files in Opticon or Ipro format." (Matsushima Decl. Exh. 1.) But while Plaintiff takes issue with the production of PDFs, it does not articulate any prejudice resulting from the production of searchable document images as PDFs rather than the image formats specified, such that re-production in the preferred type is warranted.

Plaintiff has,

however, identified a defect in the format of production that Defendant acknowledges: the fact that its PDF production collapse distinctions between documents, such that it is unclear where one document ends and another begins. (Opposition at p. 11.) Foodbank acknowledges that a supplemental response indexing separate documents is appropriate. (Ibid.) None yet appears to have been provided.

Accordingly, Defendant is directed to produce a document-level index for its production.

In summary, the motion to compel further is:

.  
GRANTED as to Requests No. 1–3, 11–14, 17, 23, 25–33, 37–38, 52, 53, 58–60, 62–63, 78, 80, 97, 101, 103, 107, 109, 121, 123–125, 127, 131–143, 155–157, and 159. Foodbank shall conform its statements of compliance to Code of Civil Procedure § 2031.220, and shall amend objection-only responses to reflect statements of compliance in conformity with actual production and this order. The motion is DENIED as to Request No. 54.

.  
GRANTED as to Requests No. 55, 57, 61, 71, 72, 119, and 120. Foodbank shall conform statements of inability to comply to Code of Civil Procedure § 2031.230.

.  
GRANTED as to Requests No. 4–10, 15–16, 18–22,  
24, 34–36, 39–51, 56, 64–70, 73–77, 79, 81–96, 98–100, 102, 104–106, 110, 111,  
114–118, 122, 126, 128–130, 144–154, 158, and 160–161. The objections offered  
against these requests are OVERRULED, except that production under Requests No.  
10–14 shall be limited to documents created on or after January 1, 2024, and  
documents that contain social security numbers or individual insurance  
information shall be redacted of such information. The motion is DENIED as to  
Requests No. 112 and 113.

.  
Defendant is directed to produce a  
document-level index for its production.

Further written  
responses shall be served within 30 days of this order. Foodbank shall produce  
documents in compliance with its statements of compliance within the same time.

5.  
Sanctions

Statute provides that  
the court shall impose sanctions upon a party who unsuccessfully makes or  
opposes a motion to compel further response to interrogatories, requests for  
production of documents, or requests for admission, absent substantial  
justification otherwise. (Code Civ. Proc. §§ 2030.300, subd. (d); 2031.310,  
subd. (h); 2033.290, subd. (d).)

Plaintiff seeks \$19,175.00 in sanctions against Foodbank,  
representing 29.5 hours of attorney work at \$650 per hour. (Matsushima Decl.  
¶¶ 55–62.) No sanctions are awarded, as Plaintiff has obtained partial  
relief, and the motion was opposed with substantial justification.

Superior Court of California

County of Los Angeles

Department 732

JENNIFER

TROIA, DIRECTOR OF CALIFORNIA DEPARTMENT OF SOCIAL SERVICES.,

Plaintiff,

v.

THE FOOD BANK OF SOUTHERN

CALIFORNIA., et al.,

Defendants.

Case No.:

25STCV08698

Hearing Date: July 30, 2026

[TENTATIVE] RULING RE:

Plaintiff

Jennifer Troia, as Director of California's Department of Social Services'

Motion to Compel Further Responses to Requests for Production from Defendant

The Food Bank of Southern California

Plaintiff

Jennifer Troia, as Director of California's Department of Social Services'

Motion to Compel Further Responses to Requests for Production from Defendant

The Food Bank of Southern California is ruled upon as follows:

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GRANTED as to Requests No. 1–3, 11–14, 17, 23,

25–33, 37–38, 52, 53, 58–60, 62–63, 78, 80, 97, 101, 103, 107, 109, 121,

123–125, 127, 131–143, 155–157, and 159. Foodbank shall conform its statements

of compliance to Code of Civil Procedure § 2031.220, and shall amend

objection-only responses to reflect statements of compliance in conformity with

actual production and this order. The motion is DENIED as to Request No. 54.

.

GRANTED as to Requests No. 55, 57, 61, 71, 72,

119, and 120. Foodbank shall conform statements of inability to comply to Code

of Civil Procedure § 2031.230.

.

GRANTED as to Requests No. 4–10, 15–16, 18–22, 24, 34–36, 39–51, 56, 64–70, 73–77, 79, 81–96, 98–100, 102, 104–106, 110, 111, 114–118, 122, 126, 128–130, 144–154, 158, and 160–161. The objections offered against these requests are OVERRULED, except that production under Requests No. 10–14 shall be limited to documents created on or after January 1, 2024, and documents that contain social security numbers or individual insurance information shall be redacted of such information. The motion is DENIED as to Requests No. 112 and 113.

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Defendant is directed to produce a document-level index for its production.

Further written responses shall be served within 30 days of this order. Foodbank shall produce documents in compliance with its statements of compliance within the same time. No sanctions are awarded.

Plaintiff to give notice.

Dated: July 30, 2026

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Hon.  
Richard S. Kemalyan

Judge  
of the Superior Court